

25SMCV05268 25SMCV05268

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-06

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Case Number: 25SMCV05268 Hearing Date: August 6, 2026 Dept: 207

TENTATIVE ruling

DEPARTMENT

207

HEARING DATE

August 6, 2026

CASE NUMBER

25SMCV05268

MOTION

Enforce Settlement

MOVING PARTY

Plaintiff American Express National Bank

OPPOSING PARTY

none

MOTION

On October 8, 2025, Plaintiff American Express National Bank ("Plaintiff") brought suit against Defendant Jonathan Jackson aka Jonathan M Jackson ("Defendant") alleging a single cause of action for Money Lent, Paid, or Expended, seeking damages in the amount of \$36,560.67.

At the Case Management Conference on April 9, 2026, Plaintiff represented to the Court that the parties had reached a settlement. Accordingly, the Court set an Order to Show Cause re: Dismissal (Settlement) for June 9, 2026.

At the June 9 hearing, Plaintiff indicated to the Court that Defendant had not complied with the terms of the settlement, and as such, a Motion to Enforce Settlement would be filed. This Motion follows and it is unopposed.

ANALYSIS

"Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement." (Hines v. Lukes (2008)

167 Cal.App.4th 1174, 1182.) In

particular, Code of Civil Procedure section 664.6 provides that "[i]f parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6.)

The

issue on a motion to enforce settlement agreement under Code of Civil Procedure section 664.6 is whether the parties entered into a valid and binding settlement agreement. (See *Viejo v. Bancorp.* (1989) 217 Cal.App.3d 200, 209, fn. 4 ["a court's power to make factual determinations under section 664.6 is generally limited to whether the parties entered into a valid and binding settlement agreement"]; see also *Hines v. Lukes*, supra, 167 Cal.App.4th at p. 1182 ["A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement"].)

In other words, the only issue before the court is whether an agreement exists concerning all of the material terms; not whether the agreement has been breached. (See *Hines v. Lukes*, supra, 167 Cal.App.4th at p. 1182 ["A

settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms"].) "If the court finds that the parties failed to agree to all material terms, there is no enforceable settlement so the court must deny the motion for entry of judgment pursuant to a settlement." (Id. at p. 1185.)

Moreover, the Hines v. Lukes court stated: "The court ruling on the motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to enter judgment pursuant to the terms of the settlement." (Hines v. Lukes, supra, 167 Cal.App.4th at pp. 1182–1183 [cleaned up].)

In support of the motion, Plaintiff advances the parties' "Settlement Agreement with Mutual Release and Stipulation for Entry of Judgment Upon Default." Pursuant to that agreement, the parties agreed to settle the dispute for \$30,164, with Defendant making minimum monthly payments in the amount of \$1,257, with the final payment of \$1,253 due on October 26, 2027. Should Defendant default on his payments, however, Plaintiff may move for entry of judgment in the amount of the full Account Balance of \$36,560.67, less any payments made.

Plaintiff also advances the Declaration of Spencer Penuela, which provides:

5. Default: Under the terms of the stipulation, as of the date of this declaration, Defendant should have paid \$8,799.00; however, Plaintiff has received only \$7,542.00.

6. My office has made attempts to contact the Defendant unsuccessfully. Attached hereto as Exhibit 2 is a true and correct copy of a letter sent to the Defendant in regards to the default.

7. Based thereon, Defendant owes the following amounts:

Principal:

\$36,560.67 (agreed account balance amount from
settlement) – \$7,542.00 (payments made) = \$29,018.67

Costs:

\$460.32 (\$435.00 for filing complaint & \$25.32
e-filing fee) + \$85.82 (\$73.55 for service of process & \$12.27 e-filing
fee) + \$60.00 (fee for filing this motion) + \$435.00 (defendant's first
appearance fee) = \$1,041.14

Judgment Total:

\$29,018.67 (new principal) + \$1,041.14 (costs) =
\$30,059.81

8. Based upon the foregoing, Plaintiff respectfully
requests that the court enter judgment in favor of Plaintiff and against
Defendant in the amount of \$30,059.81. Plaintiff is submitting a proposed form
of order and proposed form of judgment herewith.

(Penuela Decl.

¶¶ 5-8.)

Conclusion

Plaintiff

has adequately demonstrated entitlement to judgment in the amount of \$30,059.81 pursuant
to the settlement agreement. Accordingly,
the Court
grants Plaintiff's unopposed motion.

Further, the Court will enter the proposed Order and Judgment
lodged on June 9, 2026 in conformity with the ruling.

Plaintiff shall provide notice of the
Order and Judgment, and file the notices with proofs of service forthwith.

DATED: August 6, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court